

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

CHINA UNITED LINES, LTD., *Complainant*

v.

AMAZON.COM SERVICES LLC; AMAZON LOGISTICS INC.;
AND BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.,
Respondents.

DOCKET NO. 25-04

Served: February 5, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER GRANTING MOTIONS TO AMEND COMPLAINT AND TO EXTEND THE TIME TO RESPOND

On January 17, 2025, the Commission issued a Notice of Filing of Complaint and Assignment. On January 28, 2025, Complainant submitted a motion seeking leave to file an amended complaint with a copy of the proposed amended complaint ("Motion to Amend"). On February 4, 2025, Respondents filed a motion for extension of time to answer or otherwise respond to the complaint ("EOT Motion").

The short motion describes the changes in the amended complaint, stating:

The changes that Complainant seeks to make in the amended complaint do not alter the facts pled in the original complaint or the reparations sought. Rather, the amendment incorporates additional references to Commission regulations applicable to the facts alleged and reparations sought in the original complaint. Further, since no answer or other response has been filed, Respondents have ample opportunity to reply to all issues raised in the amended complaint.

Motion to Amend at 2. Additionally, the amended complaint adds a fifth count.

Respondents state that only one of three Respondents has yet received service of the original complaint, that "[w]hile the date for response given the amended complaint is unclear, the motion is being filed now to avoid any potential question as to timing," and that Complainant's counsel was advised of the request. EOT Motion at 1. Respondents do not indicate that they have any objection to the amended complaint.

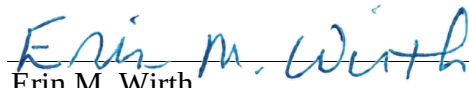
Commission Rule 66(a) provides in pertinent part that amendments "will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issue, without opportunity to reply to such amended pleading and to prepare for the broadened issues." 46 C.F.R. § 502.66(a).

The Commission's Rules do not provide criteria for evaluating a motion to amend a complaint. However, Commission Rule 12 provides that "for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice." 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), "a party may amend its pleading once as a matter of course" within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that period, an amended pleading is permitted with the opposing party's written consent or leave of court, which should be freely given when justice so requires. F.R.C.P. 15(a)(2). "Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments." *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted); *see also Foman v. Davis*, 371 U.S. 178, 182 (1962).

Here, filing of the amended complaint should not delay the proceeding as it was filed very early in the proceeding; the motion is not opposed; and the proposed changes will clarify the issues. In addition, the request to extend the time to respond to the amended complaint is appropriate under these circumstances, although an extension of this deadline will not be possible to ensure that the case is handled expeditiously.

Accordingly, it is hereby **ORDERED** that Complainant's motion for leave to file an amended complaint be **GRANTED**. The Office of the Secretary is asked to serve the amended complaint on the Respondents. If the parties have an updated address for any of the Respondents, they should advise the Office of the Secretary.

It is further **ORDERED** that Respondents' motion for extension of time to answer or otherwise respond to the amended complaint be **GRANTED**. The Respondents should file their response to the amended complaint on or before March 26, 2025.


Erin M. Wirth
Chief Administrative Law Judge